

Court No. - 1

Case :- WRIT - C No. - 535 of 2020

Petitioner :- Minakshi Saxena

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Arpit Agarwal

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri Arpit Agarwal, learned counsel for the petitioner, Sri Dhananjay Kumar Mishra, learned Advocate holding brief of Sri Ajay Kumar Upadhyay, learned counsel for respondent nos. 2, 3, 4 & 5, learned Standing Counsel for respondent no. 1 and perused the record.

By means of this writ petition under Article 226 of the Constitution of India, the petitioner has prayed for a writ of mandamus commanding the respondent authorities to give electricity connection to the petitioner.

According to the pleadings, as have been raised in the present writ petition, the petitioner applied for a new electricity connection on 05.12.2019, but instead of granting electricity connection to the petitioner, the respondents authorities vide communication dated 12.12.2019 were asking for the ownership certificate of the premises in response to which the petitioner has supplied the indemnity bond as provided under Clause 4.4 of the U.P. Electricity Supply Code, 2005 to the respondent authorities. However, she submits, till date no action has been taken for grant of electricity connection to the her.

Learned counsel for the petitioner has further drawn our attention to the relevant provisions as contained under Chapter IV of U.P. Supply Code, 2005.

We have gone through the relevant provisions as contained under Chapter IV, particularly clauses 4.1, 4.3 and 4.4 which cast obligation upon the licensee namely the respondents herein, to consider the application of the petitioner for new electricity connection and if otherwise there is no legal impediment, to ensure that electricity connection is granted speedily within a month.

We find no justification, therefore, for inaction on part of the respondents to linger on the matter and not to take any decision either to grant electricity connection or to refuse the same for the reasons to be accorded.

In such view of the matter, we are disposing of the writ petition with a direction to the respondent no. 3 to consider the application of the petitioner for grant of new electricity connection and pass a reasoned and speaking order, either way, positively within a period of four weeks from the date of production of certified copy of this order.

With the aforesaid observations and directions, the writ petition stands **disposed of**.

Order Date :- 9.1.2020
IrfanUddin

(Ajit Kumar,J.) (Ramesh Sinha,J.)